

CV-25-005440 MARTIN, STEVEN CURTIS vs DHILLON, SARBIJT SINGH - Defendant's General, or in the Alternative Special Demurrer, to Plaintiff's First Amended Complaint – SUSTAINED, without leave to amend.

County: stanislaus

Division: Civil Law and Motion

Department: 23

Hearing date: 2012-04-02

Motion: This action arises from a July 1, 2023, motor vehicle collision. The original complaint was filed June 4, 2025, in the name of Steven Curtis Martin. Judicially noticed materials establish that Steven Martin died on February 10, 2025, approximately four months before the complaint was filed. The court previously sustained a demurrer to the original complaint with leave to amend. The First Amended Complaint was thereafter filed by Anita Marie Martin as successor-in-interest. The threshold issue is whether a complaint filed in the name of a deceased person may serve as the basis for a later amendment adding a successor-in-interest after expiration of the applicable limitations period. The court concludes it may not. A deceased person lacks legal existence and cannot commence litigation. Unlike the cases relied upon by plaintiff, this is not a situation in which a living plaintiff filed suit in an incorrect capacity or where the real party in interest was later substituted into an existing action. Rather, the original complaint was filed in the name of a person who had already died. As a result, no valid action was commenced on June 4, 2025. The court finds *Coats v. K-Mart Corp.* (1989) 215 Cal.App.3d 961 persuasive. There, the court declined to apply the relation-back doctrine where the plaintiff lacked authority to sue when the action was initiated. Here, the defect is even more fundamental, because the named plaintiff was deceased before suit was filed. The First Amended Complaint (FAC) therefore has no valid pleading to which it may relate back. The court acknowledges plaintiff's showing that counsel apparently acted in good faith and was unaware of Steven Martin's death when suit was filed. The court further acknowledges counsel's explanation that locating Anita Martin was complicated by the death certificate's indication that decedent had never married. However, good faith alone cannot create a viable action where none existed. Lack of prejudice to defendants likewise does not overcome the statutory limitations bar. Because the original complaint was a nullity, the FAC commenced the first valid action in this matter. By that time the applicable statutes of limitation had expired. Plaintiff has not demonstrated a reasonable possibility that the defect can be cured by further amendment. The demurrer is therefore SUSTAINED WITHOUT LEAVE TO AMEND.

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